

HOUSE No. 3804**The Commonwealth of Massachusetts**

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve pedestrian safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/15/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/22/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>1/29/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/24/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/24/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>3/25/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/25/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/25/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/25/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>3/25/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>3/25/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/28/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/3/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/19/2025</i>

HOUSE No. 3804

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 3804) of Tommy Vitolo and others relative to pedestrian safety. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve pedestrian safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 85 Section 2 of the General Laws, as appearing in the 2024 Official
2 Edition, is hereby amended by inserting in line 61 after the word “prohibited” the following: -

3 “The department’s manual must indicate that where pedestrians who walk slower, use
4 mobility aids, or who walk at slower speeds resulting from transporting, assisting, or conveying
5 another person, routinely use the crosswalk, these factors should be considered in determining
6 the pedestrian clearance time. The department will be responsible for promulgating regulations
7 that direct a municipality to:

8 (a.) create a list of locations within their boundaries that are heavily used by pedestrians
9 who are likely to have: (i.) a slower than average walking speed resulting due to age, (ii.) a
10 slower than average walking speed due to a physical mobility issue, and (iii.) slower walking
11 speeds resulting from transporting, assisting, or conveying another person through a signalized
12 crosswalk.

(b.) require that locations contained in said list, where there are signalized crosswalks regularly in use, account for the slower walking speed of pedestrians by adjusting signal walk clearance times to a reasonable degree to allow for pedestrians to safely complete a crossing.”

SECTION 2. The administrator of the department of highways will promulgate regulations for the implementation of Section 1 not later than January 1, 2026. Municipalities must be in compliance with said regulations not later than January 1, 2027